

Amendment No. 3 to HB0957

Leatherwood
Signature of Sponsor

AMEND Senate Bill No. 938

House Bill No. 957*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-50-813(a), is amended by inserting the language "because the employee becomes the foster parent of a child from birth to six (6) years of age," after the language "adoption," in the first sentence; and further amend by inserting the language "foster placement," immediately after the language "adoption," in the second sentence.

SECTION 2. Tennessee Code Annotated, Section 8-50-813, is amended by adding the following as a new subsection:

(i) An employee who becomes the foster parent of a child from birth to six (6) years of age shall not continue to utilize leave granted under subsection (a) once the child is no longer placed in the foster parent's home or custody.

SECTION 3. Tennessee Code Annotated, Section 8-50-813(d), is amended by deleting the subsection and substituting:

(d) An eligible employee must not be granted more than six (6) workweeks of paid leave under subsection (a) during a twelve-month period, but the workweeks do not need to be taken consecutively. Leave granted under subsection (a) may be taken on a reduced schedule or intermittently as provided under 29 U.S.C. § 2612 of the federal Family and Medical Leave Act. An eligible employee may receive no more than six (6) workweeks of paid leave during a twelve-month period, even if there is more than one (1) qualifying birth, adoption, foster placement, or family member's serious health condition under subsection (a). If an eligible employee uses only a fraction of the leave

granted under subsection (a), then the eligible employee may use the remaining balance of leave for any qualifying birth, adoption, foster placement, or a family member's serious health condition that occurs within the same twelve-month period. Leave granted pursuant to this section for a qualifying birth, adoption, or foster placement must be used within twelve (12) months of the qualifying birth, adoption, or foster placement.

SECTION 4. Tennessee Code Annotated, Section 8-50-813(e)(1), is amended by adding the following new subdivision:

() "Foster parent" means a person with whom a child in the care, custody, or guardianship of the department of children's services is placed for foster care, but does not include a person with whom a child is placed for the purposes of respite or adoption.

SECTION 5. This act takes effect January 1, 2027, the public welfare requiring it.